

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

2. CHEYENE BONARI V. JOHN HARTSOUGH

24FL0767

Petitioner filed a Request for Order (RFO) on February 6, 2026, seeking a modification of child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had attended within the prior six months. Respondent was served with only the RFO on February 6, 2026. There is no Proof of Service showing the Department of Child Support Services was served.

Petitioner filed an ex parte application for emergency custody orders on March 19, 2026. Respondent filed a Responsive Declaration on March 23 and again on March 24th. The court granted the ex parte request in part on March 24, 2026 and referred the parties to an emergency set CCRC appointment on April 7, 2026 and a review hearing set for May 7, 2026. Respondent was served on March 24, 2026. There is no Proof of Service showing the Department of Child Support Services was served.

Both parties attended CCRC on April 7, 2026. The parties were unable to reach any agreements. A report with recommendations was filed with the court on April 28, 2026, and mailed to the parties on April 29th.

Respondent filed a Responsive Declaration on April 29, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it. Additionally, the court finds this to be late filed. Civil Procedure section 1005(b) states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 24th the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #2: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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3. KENNETH CROMPTON V. DAYNA CROMPTON

23FL0077

On January 5, 2026, the court held an evidentiary hearing regarding whether Respondent had rebutted the Family Code § 3044 presumption. The court found Respondent had failed to demonstrate the presumption had been overcome. The court then made orders regarding conjoint counseling and parenting time and set a review hearing on May 7, 2026 to determine Respondent's progress in conjoint therapy as well as supervised parenting time.

Petitioner filed a Supplemental Declaration on April 24, 2026. Respondent and Minors' Counsel were served on April 22, 2026. Petitioner outlines the lack of progress since the January 5, 2026 hearing. Respondent continues to miss visits on a regular basis. Respondent continues to interrogate the minors about the court proceedings. Respondent's concerning behaviors with inundating Petitioner with messages on the co-parenting application has continued as well. Petitioner requests the parenting time be reduced to every other week as Respondent has only attended five out of the 15 scheduled visits. Petitioner further requests an additional drug testing protocol, due to concerns with Respondent's testing anomalies. Petitioner arranged for the minors to participate in conjoint therapy. The therapist determined that it is not appropriate at this time, due to the minors' unwillingness to engage with Respondent.

Respondent has not filed a Supplemental Declaration.

Minors' Counsel has not filed a Supplemental Declaration.

The court has read and considered the filings as outlined above. The court makes the following modifications to the current orders, as the modifications are in the best interests of the minors. Conjoint therapy shall not commence until Respondent demonstrates a minimum of four consecutive months of consistent parenting time with no missed or cancelled visits. Further conjoint therapy shall not commence until the minors' individual therapist as well as conjoint therapist believe it is appropriate. The minors shall continue in individual therapy at a frequency and duration as directed by the therapist not to exceed one year. The therapist shall determine the goals and objectives of therapy. Respondent shall not discuss any aspects of the court case, custody, or parenting time with the minors under any circumstances except under the supervision and direction of a therapist. Respondent shall continue to have professionally supervised parenting time at a frequency of one time every other week for a period of two hours. Respondent shall submit to random urine drug testing through U-Verify drug testing with DNA verification. Testing